

Opinion of the Court

be found in American legal treatises throughout the 19th century.¹⁸

Nor is this a case where the original public meaning was lost to time and only recently recovered. This Court has, repeatedly and over many years, recognized that the Sixth Amendment requires unanimity. As early as 1898, the Court said that a defendant enjoys a “constitutional right to demand that his liberty should not be taken from him except by the joint action of the court and the unanimous verdict of a jury of twelve persons.”¹⁹ A few decades later, the Court elaborated that the Sixth Amendment affords a right to “a trial by jury as understood and applied at common law, . . . includ[ing] all the essential elements as they were recognized in this country and England when the Constitution was adopted.”²⁰ And, the Court observed, this includes a requirement “that the verdict should be unanimous.”²¹ In all, this Court has commented on the Sixth Amendment’s unanimity requirement no fewer than 13 times over more than 120 years.²²

¹⁸ See, e.g., J. Pomeroy, *An Introduction to Municipal Law* § 135, p. 78 (1864); J. Tiffany, *Government and Constitutional Law* § 549, p. 367 (1867); T. Cooley, *Constitutional Limitations* 319–320 (1868); 1 J. Bishop, *Criminal Procedure*, ch. LXII § 897 (rev. 2d ed. 1872).

¹⁹ *Thompson v. Utah*, 170 U.S. 343, 351 (1898). See also *Maxwell v. Dow*, 176 U.S. 581, 586 (1900).

²⁰ *Patton v. United States*, 281 U.S. 276, 288 (1930).

²¹ *Ibid.* See also *Andres v. United States*, 333 U.S. 740, 748 (1948) (“Unanimity in jury verdicts is required where the Sixth and Seventh Amendments apply”).

²² In addition to *Thompson*, *Maxwell*, *Patton*, and *Andres*, see *Johnson v. Louisiana*, 406 U.S. 356, 369 (1972) (Powell, J., concurring); *United States v. Gaudin*, 515 U.S. 506, 510 (1995); *Richardson v. United States*, 526 U.S. 813, 817 (1999); *Apprendi v. New Jersey*, 530 U.S. 466, 477 (2000); *Southern Union Co. v. United States*, 567 U.S. 343, 356 (2012); *Blakely v. Washington*, 542 U.S. 296, 301–302 (2004); *United States v. Booker*, 543 U.S. 220, 233–239 (2005); *Descamps v. United States*, 570 U.S. 254, 269 (2013); *United States v. Haymond*, 588 U.S. 634, 642 (2019) (plurality opinion).